

Subrecipient Agreement

This Subrecipient Agreement (hereinafter referred to as the “Agreement”), **effective (upon signature of NCDMM)**, is made between **National Center for Defense Manufacturing and Machining (“NCDMM”)** (hereinafter known as “Contractor” or “Prime”), having offices at 699 Scalp Avenue, Johnstown, PA 15904-1619, and the **Youngstown Edison Incubator Corporation, D.B.A., Youngstown Business Incubator**, (hereinafter known as “Subrecipient”), having offices at 241 W Federal St, Youngstown, OH 44503 with a UEI number of E38PN6F4AVU3 and a Cage Code of 5EAR9.

NCDMM is a manufacturing technology center that has entered an agreement with **Energetics Technology Center (ETC)**, to act as an administrator and technical performer for **ETC and the Naval Surface Warfare Center Indian Head Division (NSWC IHD)** for **ICAM – Digital Engineering Workforce** referred to herein as either “Contractor’s Customer,” “Client” or “Government”, under **Grant N00174-20-1-0031 with CFDA number 12.300**, (hereinafter referred to as the “Prime Contract”).

This Agreement sets forth the terms and conditions under which Subrecipient will provide certain services to Contractor in support of the Prime Contract. Contractor and Subrecipient are also known individually as a “Party” or together as the “Parties” to this Agreement. The Parties agree as follows:

1. SCOPE OF WORK.

Subrecipient, acting as an independent contractor and not as an agent for Contractor, shall furnish all the labor, material, tools, equipment, supervision, and services necessary to provide the goods and/or services identified and described in **Attachment 1** attached hereto (hereinafter the “Statement of Work” or “work”) under this Agreement, and shall otherwise do all things necessary for, or incident to, comply with this Agreement. The work shall be performed by Subrecipient in a good and workmanlike manner.

2. RELATIONSHIPS.

Contractor and the Government shall have the right to direct the execution of the work and to coordinate such work with the work of others; and Contractor shall have, with respect to Subrecipient, the same rights and powers as the Government has reserved to itself with respect to Contractor for the performance of the applicable portions of the Prime Contract.

In providing goods and/or services pursuant to this Agreement, each party is an independent contractor, is not an agent or employee of the other, and is not authorized to act on behalf of the other. Subrecipient’s representatives shall at all times and for all purposes be deemed not to be employees of Contractor. Notwithstanding any other Article herein, it is expressly understood that the Subrecipient is completely responsible for compliance with the terms and conditions of this Agreement, and any reviews or approvals given by Contractor in no way relieve the Subrecipient of this responsibility.

Subrecipient is not authorized to communicate on any matter on behalf of Contractor, and the Contractor is contemplated as the sole interface with the Government on any matter relating to the Prime Contract, or this Agreement. Subrecipient shall promptly notify Contractor within one business day of any communication initiated by the Government directly with the Subrecipient concerning the Prime Contract, or this Agreement.

3. ORDER OF PRECEDENCE.

Any ambiguity, discrepancy, inconsistency or conflict in or between any of the technical or contractual provisions of this Subrecipient shall be resolved by applying the most reasonable interpretation under the circumstances, giving full consideration to the intentions of the parties at the time of contracting and the following order of precedence:

- A. This Agreement, including attachments, and any modifications hereto,
- B. The Statement of Work issued under this Agreement,
- C. Any task or delivery orders issued under this Agreement and any modifications issued thereto,
- D. Government Terms and Conditions incorporated by reference or by operation of law,
- E. Representations and certifications,
- F. Other documents, exhibits, and attachments.

4. **INCORPORATION OF CERTAIN PRIME CONTRACT TERMS.**

This Agreement may be subject to certain portions of Contractor's Prime Contract, a copy of which is presented at **Attachment 2**. All such portions, to include all clauses required by regulation and/or necessary to allow Contractor appropriate administration of this Agreement, are "flowed down" from Contractor to Subrecipient, and are incorporated herein.

Whenever a reasonable interpretation of the context of the provisions thereof so requires in order to properly express the relationship between Contractor and Subrecipient, Subrecipient shall interpret references within the provisions referring to the Government as referring to Contractor, and references to Contractor as referring to Subrecipient.

Contractor reserves the right to clarify and resolve any ambiguity associated with the applicability of any portion of Contractor's Prime Contract or the identification of any parties referenced therein.

5. **CERTIFICATIONS PROVIDED BY SUBRECIPIENT.**

As part of Contractor's source selection process, Contractor may have relied upon certain certifications or representations supplied by Subrecipient. Any such certifications or representations are incorporated herein, whether or not they are physically attached or specifically referenced.

6. **CONTRACT TYPE.**

NCDMM is entering into a **Cost Reimbursement No Fee** Agreement with the Subrecipient.

7. **PERIOD OF PERFORMANCE.**

This Agreement is valid for the period indicated below (the "Base Period"). This Agreement may contain optional ordering periods ("Contract Options"), if so indicated below.

Period of Performance: **Date of Award through July 9, 2025**
Options: None

8. **EXERCISE OF CONTRACT OPTIONS AND/ OR ORDER OPTIONS.**

Contractor may authorize continued Subrecipient performance of this Agreement beyond the Base Period by exercising Contract Options to the same extent that any options of the Contractor's Prime Contract are exercised.

9. **CONTRACT VALUE AND CONTRACT FUNDING.**

This Agreement **value** is \$1,000,690.00. This Agreement **funding** is \$1,000,690.00.

Unless otherwise agreed in writing by the Parties, the foregoing amounts represent NCDMM's total obligation for any and all activities and any and all expenses incurred by or on behalf of subrecipient. The total funds authorized by this agreement shall not exceed \$1,000,690.00.

10. **BASIS OF ESTIMATE/BUDGET.**

Subrecipient's cost proposal titled Digital Engineering, dated 03 NOV 2023, included as **Attachment 3**, and all attachments are hereby incorporated by reference and in their entirety.

11. DEFENSE PRIORITY RATING.

This contract is rated: (not rated). Rated contracts are subject to requirements identified at USC 15 CFR 700.

12. POINTS OF CONTACT AND RESPONSIBILITIES.

	National Center for Defense Manufacturing and Machining	Youngstown Business Incubator
CONTRACTUAL REPRESENTATIVE		
Name:	Susan Blough	Barbara Ewing
Title:	Director, Contracts and Compliance	Contracts
Mailing Address:	NCDMM	Youngstown Business Incubator
	699 Scalp Ave. Johnstown, PA 15904	241 W Federal St Youngstown, OH 44503
E-mail Address:	susan.blough@ncdmm.org	beving@ybi.org
Telephone:	814-281-3336	330-746-5003
TECHNICAL REPRESENTATIVE		
Name:	Jamie White	Stephanie Gaffney
Title:	Director of Program Development	VP of Advanced Manufacturing Operations
Mailing Address:	NCDMM	Youngstown Business Incubator
	5021 Technology Drive, Suite E Huntsville, AL 35805	241 W Federal St Youngstown, OH 44503
E-mail Address:	jamie.white@ncdmm.org	sgaffney@ybi.org
Telephone:	256-251-6121	330-503-0561

Subrecipient's contacts with Contractor which affect the labor rates, schedule, statement of work, and Agreement terms and conditions shall be made with the authorized Contractual Representative. No changes to this Agreement shall be binding upon Contractor unless incorporated in a written modification to the Agreement and signed by Contractor's and Subrecipient's Contractual Representatives or their authorized representatives.

All efforts described within the Statement of Work shall be performed under the technical direction of, and approved by, Contractor's Technical Representative. When, in Subrecipient's opinion, such technical direction constitutes a change to the Agreement, Subrecipient shall notify Contractor's Contractual Representative immediately for authorization of such change. Until such authorization is granted by Contractor's Contractual Representative, Subrecipient shall perform in accordance with the Subrecipient Agreement as specified.

13. NOTICES.

Any notice, request, document, or other communication submitted by either party to the other under this Agreement shall be in writing and either delivered by U.S. mail or commercial carrier with proof of delivery, or through a wire or electronic medium which produces a tangible record of the transmission, such as e-mail or facsimile. It shall be deemed delivered upon receipt of proof of delivery when transmitted to the parties' respective contractual representative at the address or appropriate electronic destination provided in this Agreement for such individuals.

14. CHANGES.

Contractor may, at any time, without invalidating the Subrecipient or any bond(s) given hereunder, make changes to this Agreement or any Orders issued hereunder which would be necessary to allow Contractor to comply with the requirements of Contractor's Prime Contract. If such change is made by or in any manner results from a change, revision or requirement of the Government, then any adjustment to the price or to the time for completion of the work shall be made

or claimed within fifteen (15) days (or shorter period, if Contractor's Agreement with Contractor's customer necessitates a shorter response). Failure to agree to any adjustment amount(s) shall be a dispute and subject to resolution under the Disputes clause of this Agreement. If the provisions of the Prime Contract require the submission of a priced proposal in response to any such change, revision or requirement and Subrecipient fails to submit such proposal in the form and within the time specified, Subrecipient shall be conclusively bound by such adjustment as the Government may thereafter determine is appropriate. Notwithstanding any inability to agree upon any adjustment or the basis for an adjustment, Subrecipient shall, if directed by Contractor and/or the Government, nonetheless proceed in accordance with the Order, and the price and time of completion shall be adjusted in accordance with the foregoing. If requested by Contractor and/or the Government, Subrecipient shall submit forthwith its detailed estimate of the value of and time involved in any such change or proposed change, including unit costs if requested, and shall furnish detailed records of costs or savings actually realized as a result of any such change, along with any other documentation required by the Prime Contract. If any such changes diminish the work to be done, they shall not form the basis for a claim by Subrecipient for loss of anticipated profits.

15. OWNERSHIP OF DELIVERABLES PRODUCED UNDER THIS AGREEMENT AND DATA RIGHTS.

Contractor will own all rights, title to, and interest in any and all intellectual property that is created, conceived of, reduced to practice or authored solely by Contractor's employees. Subrecipient will own all rights, title to, and interest in any and all intellectual property that is created, conceived of, reduced to practice or authored solely by Subrecipient. Both Parties will own all rights, title to, and interest in any and all intellectual property that is created conceived of, reduced to practice, or authored jointly by Contractor and Subrecipient. Each Party agrees to grant and hereby grants a nonexclusive, nontransferable, nonassignable, royalty-free right and license to intellectual property owned by the other Party for its use solely in support of internal, non-commercial research or educational purposes. Each party agrees to grant the Government rights specified in Attachment 5.

16. WARRANTY.

Subrecipient represents and warrants that:

- A. All goods and services delivered pursuant hereto will be suitable for the purposes described in this Agreement;
- B. All goods shall be new and free from defects;
- C. All goods and services will conform to the requirements as set forth in this Agreement; and
- D. All warranty services performed pursuant hereto will be free from defects in material and workmanship and will be performed in accordance with the terms of this Agreement. Subrecipient shall correct or re-perform any defective or nonconforming services, and shall replace any faulty goods, as may be required by Contractor, at no cost to Contractor for the duration of the warranty period.
 - 1. If Contractor requires Subrecipient to correct or re-perform, Subrecipient's work shall be subject to the same requirements as the work initially performed. If the Subrecipient fails or refuses to correct or re-perform, the Contractor may correct or re-perform with similar services and charge to the Subrecipient the cost occasioned thereby.
 - 2. If Contractor does not require Subrecipient to correct or re-perform, Contractor shall adjust the amount payable to Subrecipient.

Subrecipient shall warrant that all goods and services provided shall be free of defects (for goods) and conform to the requirements of this Agreement, and shall be consistent with the professional skill and care provided by firms performing similar services as of the date of Acceptance and for the longer of the following, as calculated from the date of Acceptance:

- A. For Goods:
 - 1. The length of the manufacturer's warranty; or
 - 2. Other term as required by Contractor, not to exceed the term specified in the Contractor's Prime Contract with the Government.
- B. For Services:
 - 1. One year; or
 - 2. Other term as required by Contractor, not to exceed the term specified in Contractor's Prime Contract with the Government.

17. INSPECTION AND ACCEPTANCE.

“Inspection,” or the process of validating that the goods or services provided by Subrecipient meet the requirements of this Agreement or Orders issued hereunder, and “Acceptance,” or the process of assuming responsibility for the goods or services provided by Subrecipient to Contractor (or to the Government), shall be performed according to the process outlined within the Statement of Work. If no such processes are defined, inspection and acceptance shall be subject to the following:

A. If Contractor is the end-user:

1. If testing is not required, inspection shall take place within a 30-day inspection period following presentation of a deliverable by Subrecipient to Contractor.
2. If testing is required, inspection shall take place within 90-day inspection period following presentation of a deliverable by Subrecipient to Contractor.

Deliverables are assumed to be accepted following the expiration of the above inspection period (and any adjustments required thereto resulting from resubmission of a deliverable), unless earlier rejected, in writing; or, as of the date which Contractor assumes ownership of goods or approves specific services, as evidenced in writing.

If Contractor rejects the deliverable, Subrecipient shall make appropriate corrections within 14 days of written notice of rejection and shall resubmit to Contractor for approval. If corrections require a longer period, Subrecipient shall submit a corrective action plan to Contractor describing the corrective actions required and the timeframe required for such actions. Contractor reserves the right to disapprove the corrective action plan and terminate the Agreement or particular Order for default. If the same deliverable is rejected three times, Contractor may terminate the Agreement or applicable Order for default.

B. If the Government is the end-user:

Inspection can take place at any time following presentation of a deliverable by Subrecipient to Contractor, subject to any limitations incorporated within Contractor’s Prime Contract.

Deliverables are accepted following the expiration of any inspection period incorporated within Contractor’s Prime Contract, and subject to any limitations therein, unless rejected, in writing; or, as of the date which the Government assumes ownership of the goods or approves specific services provided by Contractor in which the goods and/or services of Subrecipient are incorporated, as evidenced in writing.

If Contractor rejects the deliverable (or if the Government rejects Contractor’s deliverable which incorporated Subrecipient’s deliverable by reason of Subrecipient’s contribution to Contractor’s deliverable), Subrecipient shall make appropriate corrections within a timeframe specified by Contractor for such correction. Contractor reserves the right to terminate the Subrecipient or a particular Order for default if Subrecipient is unable to make the appropriate corrections within this timeframe. If the same deliverable is rejected (either by Contractor or by the Government, as described in this section) three times, Contractor may terminate the Agreement or the applicable Order for default.

Title for any deliverable(s) shall transfer to Contractor upon Subrecipient’s delivery, but shall revert with Subrecipient upon rejection of such deliverable(s) or revocation of acceptance of such deliverable(s) by Contractor or the Government.

18. GOVERNMENT-FURNISHED PROPERTY.

All property furnished by the Government and/or acquired by Contractor or Subrecipient that can be considered Government Property, as such terms are defined by 2 CFR part 200 and/or applicable procurement regulations, and which are or become under the control of the Subrecipient, are to be treated by the Subrecipient as required by such regulations. Subrecipient may purchase real property or equipment in whole or in part with federal funds under an award only with the prior approval of the Contractor, who must obtain same approval from the Government. Any specific concerns shall be addressed as they arise, and the Contractor’s decision regarding such shall be final, subject to the dispute resolution procedures elsewhere in this Agreement.

19. PACKAGING, MARKING, AND DELIVERY.

All deliveries shall be made FOB destination, unless otherwise indicated in writing. The required time and place of delivery of products or provision of services, and any required markings, shall be specified in the Statement of Work. If not specified therein, the Subrecipient shall be responsible to contact Contractor and request all necessary delivery-related information.

All goods shipped, mailed, or transported under this Agreement shall be afforded the degree of preservation, packaging, and packing, necessary to prevent deterioration and damage due to hazards to which they may be subjected during the process, in accordance with standard commercial practices. All such activities shall be performed at the most economical rate available, with due consideration afforded the delivery requirements specified in the Statement of Work.

20. TIME FOR COMPLETION.

Completion of the work and its several parts within the time allotted or reasonably contemplated is of the essence of this Agreement. Therefore, Subrecipient agrees: (a) to provide the materials, equipment, labor and supervision necessary to begin the work upon Contractor's order to do so, (b) to perform the work and all parts thereof promptly, diligently and in such order and sequence as Contractor may direct to assure the efficient, expeditious and timely prosecution of the entire work under this Agreement; and (c) to furnish sufficient forces, supervision, equipment and materials, at such times and for such periods, as will result in progress according to the approved progress schedule of the Contractor or any modification thereof. Contractor reserves the right to modify any of its progress schedules with respect to the required sequence or duration of the work or any portion thereof, and Contractor makes no representation that Subrecipient will be able to commence, prosecute or complete the work in accordance with any progress schedule. Subrecipient shall furnish any information requested by Contractor required for scheduling, monitoring or expediting the Work. Subrecipient shall keep itself fully apprised of the status of the work under this Agreement at all times and any failure to do so shall not form the basis for a claim by Subrecipient against Contractor. Subrecipient shall promptly let all subordinate contracts and purchase orders; shall immediately notify Contractor of any inability of the subordinate contractors and material suppliers to meet the requirements of the progress schedule; and, when required by Contractor, shall submit the names of subordinate contractors and material suppliers for approval or comment. Subrecipient shall furnish to Contractor all necessary information required for expediting and monitoring such activity and shall provide Contractor access to its subordinate contractors and material suppliers for the purpose of verifying or expediting their performance, and if the work is, or will likely be, delayed by their nonperformance or delay, Subrecipient shall reimburse Contractor for any expenses required to secure or remedy their performance.

21. OVERTIME.

Overtime is not authorized without Contractor's prior, written approval. Any approved overtime shall be incurred in accordance all applicable labor regulations and/ or requirements of Contractor's contract with Contractor's customer, if applicable.

22. EXTENSIONS OF TIME.

If for reasons beyond its control Subrecipient shall be materially delayed at any time in the progress of the work under such circumstances as would entitle Contractor to an extension of time or other relief under the Contract, Subrecipient shall be entitled to seek a corresponding extension of time for completion of the work hereunder or other relief; provided that Subrecipient shall have filed with Contractor a written claim for such extension or relief that complies with the requisites for making a claim under the Contract and in sufficient time to permit Contractor to file such a claim against the Government for an extension or other relief under the Contract. In the event the Subrecipient's performance of this Agreement is delayed or interfered with by acts or omissions of the Government, Contractor or other Subrecipients, Subrecipient may request an extension of time for the performance of this Agreement as herein above provided, but shall not be entitled to any increase in the Agreement Price or to damages or additional compensation as a consequence of such delays or interference except to the extent that the Contract entitles Contractor to compensation therefore and then only to the extent of any amounts that Contractor, on behalf of Subrecipient, recovers from the Government for such delays or interference.

23. SUBCONTRACTING AND ASSIGNMENT OF AGREEMENT.

Subrecipient shall not subcontract, assign, or delegate any of the rights, duties, or services to be performed or items to be delivered under this Agreement without the prior written approval of Contractor. Any approval, if given, is contingent upon Subrecipient's assumption of all liability for such subcontracts issued by Subrecipient hereunder and the work or services performed. Any Subrecipient retained by Subrecipient must be obliged in writing to the same obligations as are set forth herein with respect to the Subrecipient, and able to assume such obligations, including any applicable security requirements. Any assignment of this Subrecipient consented to by Contractor shall not operate to relieve Subrecipient of its primary responsibility to Contractor for the due and full performance hereof, and Subrecipient shall be liable to Contractor for all acts and omissions of Subrecipient's Subrecipients and assignees. Subrecipient agrees that any charges for work incurred by a Subrecipient retained by Subrecipient for which Subrecipient seeks reimbursement from the Contractor hereunder shall be no higher than if performed by Subrecipient, unless otherwise agreed to in writing by Contractor.

24. TRAVEL AND OTHER DIRECT COSTS (ODCs).

Travel and ODC costs are authorized only to the extent negotiated as part of the overall award amount, not-to-exceed ceiling or as specified in the applicable Statement of Work. Travel costs must be incurred in accordance with the requirements of the Federal Travel Regulations. If reimbursable to Subrecipient, Travel and ODCs may be burdened in accordance with Subrecipient's disclosed practices. Travel costs shall not bear fee/ profit, and any fixed priced support shall not be priced in such a way as to allow profit to be applied to such costs.

25. INVOICING.

For each month in which work was performed, to allow Contractor to incorporate Subrecipient's invoice into Contractor's invoice to the Government, Subrecipient shall submit an invoice to Contractor, not later than the fifth (5th) business day of the month following the month during which work was performed, reflecting the performance for the full, prior calendar month. (For fixed award efforts payable upon completion of required deliverables, or in accordance with a milestone schedule incorporated within this Agreement or Order issued hereunder as presented within the Statement of Work or a statement of work within an Order issued hereunder, this paragraph applies to the month in which the required deliverables are completed.) Invoices received after this date may be incorporated into the subsequent Contractor invoice to the Government.

If invoicing for multiple orders under this Agreement, each order is to be invoiced separately.

All invoices shall be complete, accurate and include:

- A. Subrecipient name
- B. Subrecipient Agreement number
- C. Order number (if appropriate)
- D. A unique invoice number that has not been previously used
- E. Period of performance covered by the invoice (Invoicing Period)
- F. Agreement (or Order) value
- G. Agreement (or Order) funding
- H. Total, prior, cumulative amount invoiced
- I. Total, current amount invoiced
- J. Total, cumulative amount invoiced
- K. Any information required to comply with Department of Labor, or other statutory, requirements, such as that contained within the Davis-Bacon or Service Contract Acts.

The following, additional information is required under each of the following types of invoices:

- A. Cost-Type Invoices:
 - 1. Prior, current, and cumulative amounts (costs) and hours invoiced by named individual
 - 2. Prior, current, and cumulative amounts (costs) invoiced for ODCs (travel, material, subcontracts, etc.)

3. Prior, current, and cumulative fee
4. Signature of an authorized official of Subrecipient indicating that the invoiced amounts are accurate, and that Subrecipient has in its possession records for all direct and indirect costs submitted to Contractor for payment.

B. Fixed Award Invoices:

1. Prior, current, and cumulative billable amounts for each deliverable or milestone invoiced and remaining contract to be billed
2. Signature of an authorized official of Subrecipient indicating that the invoiced amounts are accurate

Contractor may require Subrecipient to provide supporting information for any cost, claim, or expenditure, incorporated in Subrecipient's invoice to Contractor if required in Contractor's Prime Contract, and Subrecipient agrees to provide such information in the format requested by Contractor. Additionally, Subrecipient agrees to maintain all records associated with such cost, claim, or expenditure through final audit and closeout of Contractor's Prime Contract, or other period required by regulation.

Contractor may reject or require mutual coincidental correction of any invoices which contain an error or incomplete information. Contractor will make every effort to communicate notice of a rejected invoice to Subrecipient within seven business days of receipt to allow Subrecipient maximum opportunity to correct its invoice and resubmit to Contractor in sufficient time to be included with Contractor's current invoice to the Government.

Subrecipient acknowledges that its failure to render complete and accurate invoices or its failure to submit invoices by the fifth (5th) of the following month may result in delayed payment of such invoices by Contractor. Subrecipient assumes all risks from its failure to timely submit invoices.

Submit all invoices electronically to accounts.payable@ncdmm.org and copy to jamie.white@ncdmm.org.

26. PAYMENT.

Contractor shall make payment to Subrecipient on a pay-when-paid basis, within thirty (30) days of receipt of payment from the Government of invoices reflecting work performed by Subrecipient. All payments hereunder shall be made in U.S. dollars, by check. As a precursor to payment, Subrecipient must provide a fully-completed form W-9 to Contractor unless previously submitted.

27. DISALLOWANCE OF COSTS.

If any amount paid by Contractor to the Subrecipient is subsequently disallowed by the Government or the responsible audit agency for the Contract, the Subrecipient shall promptly repay to the Contractor the disapproved amount.

28. PROPRIETARY INFORMATION AND CONFIDENTIALITY.

In the normal and routine completion of this project, there may be some occasions where one Party discloses information that is proprietary and confidential to the disclosing Party. All such information which a disclosing Party believes to be proprietary, confidential, trade secret or the like undisclosed information shall be provided in writing or other permanent visual form (such as, for example, a physical prototype, physical sample, photograph, video or sound recording on any type of recording media) and designated as proprietary with an appropriate restrictive legend stamped or marked thereon at the time disclosure. Proprietary Information disclosed orally, must be identified as proprietary at the time of disclosure and summarized in writing as being proprietary within thirty (30) days of such disclosure.

The receiving Party agrees to exercise the same care and safeguards with respect to Proprietary Information disclosed by the disclosing Party as used to maintain the confidentiality of its own information of like character, but in no event less than a reasonable degree of care.

The obligations of confidentiality and non-disclosure set forth in this section 6 shall continue for a period of five (5) years from the termination or expiration of this Agreement or until the information ceases to fall under the definition of Proprietary Information.

29. INSURANCE.

In advance of performing this Agreement, Subrecipient shall, at its own expense, procure and thereafter maintain for the duration of this Agreement and any period required thereafter, the following kinds of insurance with respect to performance under this Agreement, unless additional or increased insurance requirements are specified within the Prime Contract; in which case, the insurance requirements therein shall supersede:

- *Workers' Compensation and Employer's Liability Insurance*
Subrecipient to provide such insurance as required by law except that if this Agreement is to be performed in a State which does not require or permit private insurance, then compliance with the statutory or administrative requirements in any such State will be satisfactory. The required Workers' Compensation insurance shall extend to cover employer's liability for accidental bodily injury or death and from accidental bodily injury or death and for occupational disease with a minimum liability limit of \$200,000.
- *General Liability Insurance*
Bodily injury liability insurance, in the minimum limits of \$1,000,000 per occurrence shall be required on the comprehensive form of policy. Subrecipient may be required to provide property damage liability insurance, as may be required by Contractor at any time.
- *Automobile Liability Insurance*
This insurance shall be required on comprehensive form of policy and shall provide bodily injury liability and property damage liability covering the operation of all automobiles used in connection with the performance of the Agreement. At least the minimum limits of \$400,000 per person and \$1,000,000 per occurrence for bodily injury and \$40,000 per occurrence for property damage shall be required. Subrecipient shall provide sufficient additional insurance, if required, when operating vehicles outside of the United States.
- *Insurance as Described Within the Defense Base Act*
Subrecipient, if providing any support under this Agreement or order issued under this Agreement outside of the United States (provided such support is not exclusive to the furnishing of materials or supplies), shall comply with the requirements of the Defense Base Act (42 USC 1651.) Subrecipient shall require any of its lower-tier contractors/subrecipients (if lower-tier contracting is approved by Contractor) to comply with the requirements of this clause and the Defense Base Act.
- *Additional Insurance Requirements*
Additional insurance requirements may apply in certain instances, including those in which an aircraft or a vessel is used in connection with Subrecipient's performance under this Agreement. Subrecipient shall be responsible for contacting Contractor should Subrecipient require use of an aircraft or vessel, and ensuring insurance required by Contractor, or at a minimum if not specified by Contractor, sufficient insurance, is in place prior to its use. Similarly, Subrecipient agrees to procure all other additional insurance as is required to satisfy requirements of Contractor or Contractor's customer.

Prior to the commencement of work hereunder, the Subrecipient shall furnish to the Contractor a certificate or written statement evidencing issuance of the above required insurance. The Subrecipient shall notify Contractor when cancellation or any material change in the policies adversely affects the interests of the Contractor or the Government in such insurance and such changes shall not become effective until thirty (30) days after written notice is provided to the Contractor.

In the event the Subrecipient fails to furnish such certificates prior to the commencing of work or to continue to maintain such insurance during the performance of the Agreement, the Contractor shall have the right to terminate this Agreement for default or to withhold any payments or partial payments required to be made under this Agreement and shall have the right to continue withholding any or all of said payments so long as the Subrecipient has not complied with the requirements of this clause.

The initiation or pendency of a claim or recovery under such insurance, if any, shall not be cause for Subrecipient to delay or suspend the performance of any obligation under this Agreement. Except when and to the extent specifically covered by such insurance, if any, which the Government or Contractor may maintain, Subrecipient shall be responsible for any desired coverage against damage or loss to its own material, facilities, tools, equipment, plant, scaffolds, bracing, and similar items.

Subrecipient shall furnish Contractor and/or the Government a copy of each lost time accident report made to Subrecipient's insurance carriers and shall cooperate with insurers to facilitate the adjustment of any claim or demand arising out of operations within the scope of the Work. To the extent that Subrecipient maintains insurance coverage, Subrecipient hereby waives subrogation of claims against Contractor, Government, and their agents or employees. Nothing contained in this Article shall relieve the Subrecipient of any indemnity obligations required elsewhere in the Agreement.

30. LIABILITY AND INDEMNIFICATION.

Subrecipient agrees to take all necessary precautions to prevent injury to any persons (including employees of Contractor) or damage to any property (including Contractor's property and Government-furnished property) during the term of this Agreement. Subrecipient agrees to defend, indemnify, save and hold harmless Contractor and the Government and their agents and employees, from and against any and all loss, claims, costs, damages, expenses or liabilities of any kind (including attorneys' fees, workmen's compensation and/or consequential damages) attributable to bodily injury of any nature or kind, sickness, disease or death, or damage, loss or destruction of property (including loss of use thereof), caused by, arising out of, resulting from or occurring in connection with the performance of or failure to perform this Agreement, by Subrecipient or a contractor or an agent of Subrecipient or an employee of any one of them.

Subrecipient shall not settle or compromise any demands, claims, actions, suits or proceedings for which Contractor has sought indemnification from Subrecipient unless Contractor has given its prior written consent to Subrecipient regarding such settlement or compromise. Further, Subrecipient assumes the entire responsibility and liability for losses, expenses, and damages to property of Contractor caused by the act(s) or omission(s) of Subrecipient, its employees or contractors performing under this Agreement.

Subrecipient's obligation hereunder shall not be limited by the provisions of any workmen's compensation or similar act, or by the provisions, scope or limitations of any insurance requirements or coverage.

Subrecipient is solely and exclusively liable to third parties for all costs incurred by Subrecipient and for all losses, claims or damages, of any kind or nature, against Subrecipient arising out of or based on performance of this Agreement. In addition, should the Government or any other person assert a claim or institute a suit, action, or proceeding of any nature or kind against Contractor involving the manner or sufficiency of the performance of the Work, Subrecipient shall, immediately upon request of Contractor, promptly assume the defense of such claim, suit, action or proceeding, at Subrecipient's expense, and Subrecipient shall indemnify and hold harmless Contractor and its agents and employees, from and against any liability, loss, damage, or expense of any kind or nature arising out of or related to such claim, suit, action or proceeding.

In the event a regulatory agency assesses a monetary fine against the Government for violations caused by Subrecipient negligence or improper performance, the Subrecipient shall reimburse the Government, through the Contractor, for the amount of the fine plus administrative costs.

Additionally, Subrecipient agrees to indemnify Contractor to the full extent of any price or cost reduction effected by Contractor's customer which may have resulted from the accounting practices or standards of Subrecipient or its Subcontractors/Subrecipients which are found to be non-compliant with applicable requirements of the Code of Federal Regulations and the applicable OMB Circulars, the Cost Accounting Standards, findings of the Defense Contract Audit Agency, or other applicable regulations or regulatory authorities.

Subrecipient agrees to reimburse Contractor for all costs (including attorney's fees) incurred by Contractor in enforcing or securing Subrecipient's performance of any of the provisions of this Agreement including this Article. Subrecipient shall indemnify, defend, save and hold harmless Contractor to the full extent of the costs of Contractor and its officers, agents, directors, customers, and employees (including any damages, costs or charges assessed by the government against Contractor) if any cost, price or fee included in the prime contract is reduced or liquidated, or if other

damages are incurred because Subrecipient, its Subcontractors/Subrecipients or prospective Subcontractors/ Subrecipients:

- A. Furnished cost or pricing data that was not complete, accurate and current as certified in Subrecipient's or its Subcontractor's/Subrecipient's or prospective Subcontractor's/Subrecipient's certificate of current cost or pricing data;
- B. Furnished any other data or certifications that were not complete, accurate and current as submitted;
- C. Breached this Subrecipient by: (a) violating any federal law or regulation required to be complied with under this Agreement; (b) failing to provide any certification, report or supporting information required under this Agreement; or (c) violating any warranty provided by Subrecipient; or
- D. Provided goods or services in connection with this Subrecipient which constitutes an infringement of any patent, trademark or copyright.

31. FORCE MAJEURE.

Neither Party to this Agreement shall be liable to the other for any loss or damage which may be suffered by the other due to any cause beyond the first Party's reasonable control ("force majeure") including without limitation any act of God, inclement weather, failure or shortage of power supplies, flood, drought, lightning or fire, strike, lock-out, trade dispute or labor disturbance (other than within the first Party's organization or any associated company of that Party), the act or omission of Government, highways authorities, public telecommunications operators, or other competent authority, war, military operations, or riot. The Party seeking to rely on force majeure shall as a condition precedent to the availability of this defense give full particulars in writing to the other Party of the facts or circumstances giving rise to force majeure within three (3) working days of each occurrence and shall further demonstrate that it has and is taking all reasonable measures to mitigate each force majeure event.

In the event that a force majeure condition shall continue for a period in excess of thirty (30) calendar days, computed from the first full day following the date of the occurrence of the force majeure condition, either Party may give notice of immediate termination. Such termination shall be considered a "termination for convenience" whereby Contractor and Subrecipient agree to negotiate a fair price for work in place and delivered, or to be delivered, from Subrecipient to Contractor.

32. EMPLOYEE RIGHTS.

All requirements of the Prime Contract which refer to the rights of employees, to include all wage and hour laws, provisions of the Davis-Bacon Act and/ or the Service Contract Act, and/or similar/related regulations which apply to the Contractor shall apply equally to the Subrecipient.

33. KEY PERSONNEL.

"Key Personnel" are those individuals identified as essential to performance of this Agreement. Key Personnel shall not be substituted, removed from the project, or directed to perform at a reduced level of effort for the purpose of performing in any other capacity (including an idle capacity) without prior written approval of Contractor, which will be dependent upon Subrecipient's ability to provide a substitution with equal or greater abilities, qualifications, and knowledge. Any costs associated with such substitution shall be the responsibility of Subrecipient.

Key personnel, if any, are identified in the Statement of Work.

34. ASSIGNMENT OF PERSONNEL.

Contractor reserves the right to approve all Subrecipient personnel assigned to work under this Agreement or otherwise involved in the performance of the Agreement prior to their commencement of work related to the Agreement. Should Contractor deem any Subrecipient employee ineligible to perform under this Agreement, Contractor shall document to the Subrecipient in writing the specific reasons. Contractor's approval or disapproval shall be limited to

determination of employee capability, security-related issues, experience, or other characteristic related to the employee's ability to meet the qualifications of the position for which such employee was proposed by Subrecipient.

Contractor may, after due consultation with Subrecipient, request Subrecipient to remove any employee of Subrecipient whose performance is deemed unacceptable by Contractor or Contractor's customer. Contractor's request shall be limited to, and based upon a determination of employee capability, or related to security and/ or site policy requirements, ethics, experience, or other characteristic related to the employee's ability to meet the qualifications of the position described in the Agreement as assumed by the employee. Subrecipient shall remove such employee, and shall, at the request of Contractor, replace that individual at no cost to Contractor within fifteen (15) calendar days. The Subrecipient's failure to comply with a requirement to remove personnel shall be grounds to terminate the Subrecipient for default in accordance with Provision 43 of this Agreement. In addition to any other indemnification provisions within this Agreement, Subrecipient agrees to indemnify and hold harmless Contractor from and against any liabilities, claims, charges, or suits, of any kind or nature, for alleged losses, costs, damages, or expenses, of any kind or nature, arising from Contractor's exercise of its rights under this Article.

In no event shall the actions in this section constitute any type of employment relationship between Contractor and Subrecipient's employee.

35. NON-PROSELYTIZATION OF EMPLOYEES.

During the period of performance of this Agreement and for a period of one year after its termination, neither Party shall solicit for hire as an employee, consultant, or otherwise, any of the other Party's direct or indirect personnel who have performed under this Agreement or Contract without such other Party's express written consent. Notwithstanding the foregoing, each Party reserves the right to hire, and to solicit for hire, any of the other Party's personnel providing the Services at such time as any such personnel's employment with the other Party terminates. Provided however, that (a) the term "solicit" shall not include general employment advertising and (b) the foregoing will not prevent either party from employing any person who contacts that party on his or her own initiative.

36. SECURITY REQUIREMENTS.

If provided at **Attachment 4** hereto, the Contract Security Classification Specification (DD Form 254), this Agreement and all efforts performed hereunder will be subject to the security requirements defined thereon, unless otherwise specified. In such event, said document is hereby incorporated as a part of this Agreement.

In such event, Subrecipient shall maintain and administer a security program in accordance with all requirements directed by the United States Department of Defense, the National Industrial Security Program, and those requirements identified or referenced on the aforementioned DD Form 254.

Subrecipient's loss or suspension of any required security clearance will result in the inability of Subrecipient to perform in accordance with the terms and conditions of this Agreement. In such event, this Agreement may be terminated by Contractor.

The Contractor reserves the right to direct any employee of the Subrecipient to be removed from any activities associated with this Agreement, whether such employee is engaged in a direct or indirect capacity, for reason of said employee's security violation(s) whether or not deemed of sufficient severity to warrant action to terminate the Subrecipient's or individual's security clearance. Contractor also reserves the right to direct any employee of Subrecipient to be removed for any investigation of alleged misconduct which may, in the opinion of the Contractor, jeopardize the security of the project.

37. ACCESS TO RECORDS.

In the event of an audit, Contractor accepts that only government representatives (or other representatives acceptable to Subrecipient) have access to Subrecipient's records for purposes of the audit, and Subrecipient agrees to provide access to such records and make such records available for audit. Contractor shall have access to records and financial statements as necessary in accordance with **Provision 53** to meet its obligations under 2 C.F.R. § 200.332(d)

and 200.521(c).

38. PRIVITY OF CONTRACT.

In order to properly perform this Agreement, Subrecipient may require frequent interface with Contractor's customer. However, no privity of contract exists between the Subrecipient and the Contractor's customer. Subrecipient may neither take direction from, nor discuss any terms and conditions of this Agreement, with the Contractor's customer unless Contractor's Technical Representative (or his designee, to be identified at the appropriate time) is present and authorizes the discussion. Subrecipient shall notify Contractor's Technical Representative immediately if at any time he believes the Client is effecting a change to this Agreement. Breach of this clause is cause for termination of this Agreement and any or all Orders issued hereunder.

39. ADVERTISING/ DISCLOSURE.

No news releases, including photographs and films, public announcements or confirmation of same, or advertisements in any media of any part of the subject matter of this Agreement or any phase of any effort hereunder shall be made without the prior written approval of the Contractor's Contractual Representative.

40. NON-COMPETE.

Subrecipient shall, for the period of performance of Contractor's Prime Contract and for a period of one year following the completion of all activities associated with the performance of Contractor's Prime Contract, refrain from competing with Contractor for any efforts associated with Contractor's Prime Contract, to include those task or delivery order opportunities (if such apply to Contractor's Prime Contract) for which Contractor may not submit an offer.

41. CONFLICT OF INTEREST.

Subrecipient shall notify Contractor, in writing, to identify any situation, or potential situation, that exists or may arise, which creates an actual or potential conflict of interest pursuant to Subpart 9.5 of the Federal Acquisition Regulations. If required by Contractor, Subrecipient shall prepare and submit to Contractor a Conflict of Interest Mitigation Plan acceptable to Contractor. Subrecipient may terminate this Agreement and any Orders issued hereunder to the degree that Subrecipient's continued performance of such would result in a conflict of interest.

42. DISPUTES.

Contractor and Subrecipient shall exercise their best efforts to settle all disputes arising under this Agreement by mutual agreement. In the event of any dispute or claim by Subrecipient hereunder, notice in writing of such claim shall be given to Contractor no later than seven (7) calendar days following the event, decision or other action out of which the claim arises, or such lesser period as may be required under the Contract. Such notice shall describe such dispute or claim in detail. If Subrecipient fails to provide such notice, the claim or dispute and all monetary and other relief associated therewith shall be deemed as waived and abandoned by Subrecipient.

If any such claim or dispute as to which notice is given by the Subrecipient as above provided involves any aspect of the Contract or the correlative rights and duties of the Government as defined therein then Subrecipient's rights as to such dispute or claim shall be determined solely by applicable provisions of such Contract, including any dispute determination provisions thereof. In the event that it is necessary to commence any action or proceeding against the Government to implement Subrecipient's rights as above described, then Contractor agrees to initiate such proceeding on Subrecipient's behalf upon Subrecipient's written request; provided, however, Subrecipient, and its sureties, shall be bound to Contractor to the same extent that Contractor is bound to the Government by the Contract and by any decisions or determinations made under the Contract by any board, court or arbitration panel. Subrecipient shall be responsible for the prosecution of any such proceeding at its own cost and expense and Contractor will support and cooperate with Subrecipient in such prosecution. Contractor shall cooperate with Subrecipient to facilitate a resolution of such disputes with the Government; however, all costs to resolve the dispute shall be borne by Subrecipient.

If any such claim or dispute as to which notice is given by the Subrecipient as above provided does not involve the Contract then it shall be determined as follows: Contractor shall render a written decision thereon within thirty (30) calendar days from receipt of the written notice of such claim or dispute. If Subrecipient does not accept or agree with such decision (or any part thereof) it shall so notify Contractor within seven (7) calendar days and the parties shall exert reasonable and good faith efforts to reach a satisfactory resolution. If such efforts are unsuccessful, then either party may elect to commence a legal action against the other in an appropriate court of law consistent with **Provision 48** of this Agreement. Alternatively, either party, but only with the explicit written consent of the other, may elect to initiate formal arbitration of such claim or dispute in accordance with the Rules of the American Arbitration Association and the parties agree to be bound by and to comply fully with the decision rendered in such arbitration, which shall be final and may be entered in any court of competent jurisdiction. During such arbitration proceedings, the full range of discovery procedures provided by the Federal Rules of Civil Procedure shall be available to each party.

The pendency of any such claim or dispute shall not suspend or stay in any manner the obligations under this Subrecipient and Subrecipient shall continue the work hereunder without interruption.

43. DEFAULT.

Contractor may consider Subrecipient to be in default of this Agreement should Subrecipient fail to properly perform in accordance with any of the terms and conditions stated in this Agreement. Specifically, Contractor may consider the Subrecipient in default following occurrence of any of the following, which are presented as examples, and are not represented to be all-inclusive:

- Subrecipient's falsification of any information provided to Contractor which Contractor may have used in its decision to source the goods or services described herein from Subrecipient;
- Subrecipient's failure to proceed or perform any aspect of the Subrecipient's Statement of Work, as directed by Contractor;
- Subrecipient's submission of, or Subrecipient's indication of its intent to submit, a competing offer for efforts included within Contractor's Prime Contract;
- Subrecipient's failure to comply with the insurance requirements contained herein;
- Subrecipient's violation of the privity of contract considerations contained herein;
- Subrecipient's improper use of Contractor's proprietary information;
- Subrecipient's proselytization of Contractor's employees; or
- Subrecipient's submission of incorrect, inaccurate, or misleading representations (of any type) to Contractor which Contractor relied upon in its decision to issue this Agreement to Subrecipient.

44. TERMINATION.

Contractor may terminate this Agreement in whole or in part for default, provided Subrecipient fails to cure the default condition within ten (10) days (or shorter period, if required to allow Contractor to comply with Contractor's Contract with Contractor's customer) after receiving a notice specifying the default, unless the default condition is so egregious as to endanger Contractor's ability to perform its obligations under Contractor's Contract with Contractor's customer. In such event, Contractor may terminate Subrecipient's performance immediately upon notification to Subrecipient.

Contractor's termination of Subrecipient for default may require Contractor to otherwise acquire the goods and services, and Subrecipient shall be liable for Contractor's costs associated therewith, including those costs which exceed the amount of Contractor's Contract with Subrecipient (whether funded or otherwise). The cost will include, but not exceed, the total expenditures necessary to recover goods or services lost for the work for which Subrecipient was determined to be in default.

If the Government terminates the Prime Contract in whole or in part for any reason, Contractor may terminate the Agreement in whole or in part. In addition, Subrecipient agrees to honor a stop work order issued by Contractor as a result of a stop work issued to the Contractor by the Government.

Additionally, Contractor may terminate this Agreement immediately in the event of: (1) any proceeding in insolvency, bankruptcy, dissolution or liquidation or similar, by or against Subrecipient; (2) any assignment of Subrecipient's assets for the benefit of creditors; or, (3) any transfer of substantially all of Subrecipient's business or assets

to a third party.

Upon termination, Subrecipient will immediately return to Contractor all equipment, supplies, property or other items procured by or given to Subrecipient for performance of this Agreement. In addition, Subrecipient will deliver to Contractor all work completed or in process under this Agreement.

Upon termination, the Contractor shall pay all unpaid allowable charges due to the Subrecipient in accordance with the invoicing and payment terms of this Agreement and the termination clauses of Contractor's Contract with Contractor's customer, provided a claim for such charges is received by Contractor within six (6) months of the date of the notice provided by Contractor to Subrecipient indicating the termination, or other period as stated in such notice. (In the case of partial termination for convenience, this period is 45 days, or other period as stated in such notice.)

45. CLOSEOUT.

The Contractor will close out the subaward when it determines that all applicable administrative actions and all required work of the subaward have been completed by the Subrecipient. The Subrecipient will provide all required information to close this subaward as requested by the Contractor in accordance with 2 CFR 200.344 to ensure timely closeout.

The Subrecipient must submit to the Contractor, no later than 90 calendar days (or an earlier date as agreed upon by the Contractor and Subrecipient) after the end date of the period of performance, all financial, performance, and other reports as required by the terms and conditions of the Federal award and subaward. The Contractor may approve extensions when requested and justified by the Contractor, as applicable.

The Subrecipient must account for any real and personal property acquired with Federal funds or received from the Federal Government in accordance with §§ 200.310 through 200.316 and 200.330.

The Subrecipient must make every effort to complete closeout actions no later than nine months after the end of the period of performance.

46. SUBMISSION OF REPORTS, INVOICES AND DELIVERABLES.

The Subrecipient will provide a copy of all reports, invoices and deliverables to the NCDMM Technical POC.

47. COMPLIANCE WITH LAWS.

Subrecipient agrees to comply with all laws, regulations, or requirements of the federal, state, and local government, or any other governing body, and the specific requirements of any installation in which Subrecipient performs. Subrecipient is responsible for knowledge of such requirements, whether or not the same are identified or provided in detail or summary form by Contractor.

48. CHOICE OF LAW.

Federal proceedings shall be conducted in the federal venue in, or nearest to Cambria County, Pennsylvania. All other proceedings shall be conducted in Cambria County, Pennsylvania, and in accordance with Pennsylvania law.

49. NON-WAIVER OF RIGHTS.

Contractor's failure to enforce any requirement or right conferred herein does not constitute a waiver and does not relieve Subrecipient from the responsibility for compliance therewith.

50. ENTIRE AGREEMENT.

Upon acceptance of this Agreement, both Contractor and Subrecipient agree that the provisions under this Agreement, including all documents incorporated herein by reference, shall constitute the entire Agreement between the parties hereto and supersede all prior implied, written or oral agreements relating to the subject matter hereof. This contract may not be modified or terminated orally, and neither modification nor any claimed waiver of any of the provisions hereof shall be binding unless in writing and signed by the party against whom such modification or waiver is sought to be enforced.

51. SEVERABILITY.

If any of the provisions of this Agreement shall be invalid or unenforceable, such invalidity or unenforceability shall not invalidate or render unenforceable the entire Agreement, but rather the entire Agreement shall be construed as if not containing the particular invalid or unenforceable provision or provisions, and the rights and obligations of Subrecipient and the Contractor shall be construed and enforced accordingly.

52. SURVIVABILITY.

The following sections of this Agreement survive termination of this Agreement:

- INCORPORATION OF APPLICABLE PRIME CONTRACT TERMS
- WARRANTY
- INSPECTION AND ACCEPTANCE
- INVOICING
- PAYMENT
- PROPRIETARY INFORMATION
- LIABILITY AND INDEMNIFICATION
- NON-PROSELYTIZATION OF EMPLOYEES
- SECURITY REQUIREMENTS
- ADVERTISING/ DISCLOSURE
- NON-COMPETE
- DISPUTES
- TERMINATION
- GOVERNING LAW
- ORDER OF PRECEDENCE

53. AUDIT.

If the Subrecipient expends \$750,000 or more during the Subrecipient's fiscal year in Federal Awards, the Subrecipient is subject to an audit in accordance with 2 CFR 200.501 and any flowdown provisions and will comply with all audit requirements. Subrecipient will allow the Contractor and auditors to have access to the subrecipient's records and financial statements as necessary. Subrecipient may be subject to pre-award audits, monitoring during the agreement and post-award audits.

The Subrecipient is responsible for obtaining an audit that determines and addresses the following:

- A. The subrecipient has an internal control structure that provides reasonable assurance that it is managing Federal awards in compliance with Federal laws and regulations and the terms and conditions of the awards.
- B. Based on a sampling of Federal award expenditures, the recipient has complied with laws, regulations, and award terms that may have a direct and material effect on Federal awards.

The subrecipient must make the auditor's report available to the Contractor.

54. PAYMENT OF FEE AND ACCOUNTING SYSTEM

Payment of the fee shall be made based on percent complete, not a percentage of cost. Subrecipient shall withhold a reserve not to exceed 15 percent of the total fixed fee or \$100,000, whichever is less, to protect NCDMM's and the Government's interest. NCDMM will release the remainder of fee under this subaward upon final closeout of the contract where the Subrecipient has satisfied contract terms and conditions, including the submission of the final patent and royalty reports, and has settled all years overheads with their cognizant agency.

By signing this subaward, Subrecipient certifies its accounting system is adequate and complies with the requirements of DFARS 252.242.7006 Accounting System Administration.

55. FINANCIAL REPORTING

Subrecipient is required to provide quarterly financial reports to the Contractor due within 20 days after the end of the quarter ending on March 31, June 30, September 30 and December 31. Financial reports shall include costs incurred in support of the Federal Award and an analysis of work completed and work estimated to complete the effort. A copy of the report shall be sent to the NCDMM technical point of contact.

56. REGULATORY AND STATUTORY REQUIREMENTS

The following apply as required by applicable regulations, laws or statutes:

- A. Debarment and Suspension. In Accordance with Executive Orders 12549 and 12689, only responsible contractors are eligible for award. Awards must not be made to parties listed on the governmentwide exclusions list in the System for Award Management (SAM) (<https://sam.gov>). All awards made by the entity receiving any type of award from ETC subject to the threshold identified in 2 CFR 180, shall comply with these Executive Orders and guidance at 2 CFR 180.
- B. Clean Air Act (42 U.S.C. 7401–7671q.) and the Federal Water Pollution Control Act (33 U.S.C. 1251–1387), as amended. All awards in excess of \$150,000 shall agree to comply with all applicable standards, orders or regulations issued pursuant to the Clean Air Act ([42 U.S.C. 7401–7671q](#)) and the Federal Water Pollution Control Act as amended ([33 U.S.C. 1251–1387](#)).
- C. Equal Employment Opportunity. Any award meeting the definition of “federally assisted construction contract” in [41 CFR Part 60–1.3](#) shall comply with the Equal Employment Opportunity ([30 FR 12319](#), [12935](#), [3 CFR Part, 1964–1965 Comp.](#), p. 339), as amended by Executive Order 11375, “Amending Executive Order 11246 Relating to Equal Employment Opportunity,” and implementing regulations at [41 CFR part 60](#), “Office of Federal Contract Compliance Programs, Equal Employment Opportunity, Department of Labor.”
- D. Contract Work Hours and Safety Standards Act (40 U.S.C. 3701–3708). All awards in excess of \$100,000 involving employment of mechanics or laborers shall comply with [40 U.S.C. 3702](#) and [3704](#), as supplemented by Department of Labor regulations ([29 CFR Part 5](#)). Under [40 U.S.C. 3702](#) of the Act, each contractor must be required to compute the wages of every mechanic and laborer on the basis of a standard work week of 40 hours. Work in excess of the standard work week is permissible provided that the worker is compensated at a rate of not less than one and a half times the basic rate of pay for all hours worked in excess of 40 hours in the work week. The requirements of [40 U.S.C. 3704](#) are applicable to construction work and provide that no laborer or mechanic must be required to work in surroundings or under working conditions which are unsanitary, hazardous or dangerous. These requirements do not apply to the purchases of supplies or materials or articles ordinarily available on the open market, or contracts for transportation or transmission of intelligence.
- E. Byrd Anti-Lobbying Amendment (31 U.S.C. 1352). Entities receiving an award in excess of \$100,000 and place any further awards in excess of \$100,000 certify that it will not and has not used Federal appropriated funds to pay any person or organization for influencing or attempting to influence an officer or employee of any agency, a member of Congress, officer or employee of Congress, or an employee of a member of Congress in connection with obtaining any Federal contract, grant or any other award covered by [31 U.S.C. 1352](#). Entity will require each tier to certify same and disclose any lobbying with non-Federal funds that takes place in connection with obtaining any Federal award and forward such disclosures to ETC.
- F. Davis-Bacon Act, as amended (40 U.S.C. 3141–3148) as supplemented by Department of Labor regulations (29 CFR Part 5, “Labor Standards Provisions Applicable to Contracts Covering Federally Financed and Assisted Construction”). Non-Federal Entities/Contractors shall comply with Davis-Bacon Act ([40 U.S.C.](#)

[3141](#)–3144, and 3146–3148) when the prime award is a construction contract in excess of \$2,000 and required by Federal legislation. In accordance with the statute, contractors must be required to pay wages to laborers and mechanics at a rate not less than the prevailing wages specified in a wage determination made by the Secretary of Labor. In addition, contractors must be required to pay wages not less than once a week. The non-Federal entity must place a copy of the current prevailing wage determination issued by the Department of Labor in each solicitation. The decision to award a contract or subcontract must be conditioned upon the acceptance of the wage determination. The non-Federal entity must report all suspected or reported violations to the Federal awarding agency. The contracts must also include a provision for compliance with the Copeland “Anti-Kickback” Act ([40 U.S.C. 3145](#)), as supplemented by Department of Labor regulations ([29 CFR Part 3](#), “Contractors and Subcontractors on Public Building or Public Work Financed in Whole or in Part by Loans or Grants from the United States”). The Act provides that each contractor or subrecipient must be prohibited from inducing, by any means, any person employed in the construction, completion, or repair of public work, to give up any part of the compensation to which he or she is otherwise entitled. The non-Federal entity must report all suspected or reported violations to the Federal awarding agency.

- G. Rights to Inventions Made Under a Contract or Agreement. If the Federal award meets the definition of “funding agreement” under [37 CFR § 401.2\(a\)](#) and the recipient or subrecipient wishes to enter into a contract with a small business firm or nonprofit organization regarding the substitution of parties, assignment or performance of experimental, developmental, or research work under that “funding agreement,” the recipient or subrecipient must comply with the requirements of [37 CFR Part 401](#), “Rights to Inventions Made by Nonprofit Organizations and Small Business Firms Under Government Grants, Contracts and Cooperative Agreements,” and any implementing regulations issued by the awarding agency.

57. SUBRECIPIENT AGREEMENT ACCEPTANCE.

A copy of this Agreement shall be signed and returned by Subrecipient within five (5) calendar days after it is received by the Subrecipient. Performance under this Agreement by Subrecipient shall constitute acceptance of the Agreement by the Subrecipient, including all of the terms and conditions herein. Otherwise, this Agreement is not valid until signed by representatives of both Parties. Acceptance is limited to the terms stated herein. Any additional or different terms and conditions proposed by the Subrecipient are rejected unless expressly agreed to in writing by Contractor’s Contractual Representative or his or her Authorized Representative.

This Agreement, effective as of the date first indicated above, is hereby agreed, as evidenced by the signatures of the below representatives of the Parties hereto, who, by their signature, attest that they have the ability and authority to commit their respective organization as described herein.

	National Center for Defense Manufacturing and Machining	Youngstown Business Incubator
Signature:	Gene D Berkebile Digitally signed by Gene D Berkebile Date: 2024.02.05 11:19:44 -05'00'	
Printed Name:	Gene D. Berkebile	Stephanie Gaffney
Title:	Vice President and Chief Financial Officer	Vice President Advanced Manufacturing
Date:	<u>2/5/2024</u>	<u>2/2/2024</u>

Attachment 1 – Statement of Work
Attachment 2 – Flowdown Clauses Grant Number N00174-20-1-0031
Attachment 3 – Basis of Estimate and Budget
Attachment 4 – DD 254 (Not required)
Attachment 5 – Government Data Rights

Attachment 1

Statement of Work

YBI's proposal titled YBI Digital Engineering Workforce Technical Proposal (03 NOV 2023), and all associated attachments are hereby incorporated by reference and in their entirety.

Attachment 2

NSWC IHEODTD GRANT NUMBER N00174-20-1-0031

Flowdown Clauses/ Provisions

Since this is a Subaward made to a Subrecipient by NCDMM, the references below, which refer to “Government” or Governmental entities, are changed to refer to NCDMM where applicable.

This award is governed by the guidance in 2 Code of Federal Regulations (CFR) part 200, "Uniform Administrative Requirements, Cost Principles, and Audit Requirements for Federal Awards," as modified and supplemented by the Department of Defense's (DoD) interim implementation found at 2 CFR part 1103, "Interim Grants and Cooperative Agreements Implementation of Guidance in 2 CFR part 200" (79 FR 76047, December 19, 2014), all of which are incorporated herein by reference and the articles below. Provisions of Chapter I, Subchapter C of Title 32, CFR, "DoD Grant and Agreement Regulations," other than parts 21, 22, 32, 33 and 37, continue to be in effect and are incorporated herein by reference, with applicability as stated in those provisions.

[NOTE: The term “award” shall mean “Subaward.”]

ARTICLES

1. Prior Approval Requirements not included in the General T&Cs

Prior written approval is required to extend the period of performance, without additional funds, beyond the expiration date of this grant. The Administrative Grant Officer (AGO) at the Administrative Office in Block 23.a. of the ONR Award Form (10/99) has authority to approve no funds extension requests meeting all of the following parameters:

- (a) a one-time basis only; and
- (b) for a period not to exceed 90 days; and
- (c) where \$50,000.00 or less of obligated funds remain to be expended.

In other cases, where a request is outside of one or more of the above parameters, a no funds extension can only be approved with the concurrence of the Technical Representative cited in Block 21.a. of the ONR Award Form (10/99). For any no funds extension to be effective, a written grant modification must be issued and signed by the AGO at the Administrative Office in Block 23.a. of the ONR Award Form (10/99) or the Awarding Office in Block 22 of the ONR Award Form (10/99).

[NOTE: References to “AGO,” “Technical Representative,” “Administrative Office” or “Awarding Office” shall mean “NCDMM.”]

2. Contact Information for Technical Matters

Questions regarding technical matters should be referred to the Technical Representative cited in Block 21a. of the grant.

[NOTE: NCDMM Technical Representative for this Subaward is listed in Paragraph 12.]

3. Contact Information for Administrative Matters

Questions regarding administrative matters should be referred to the Administrative Grants Officer (AGO) at the Administrative Office cited in Block 23a. of the grant.

[NOTE: NCDMM Representative for All other Matters is listed in Paragraph 12.]

4. Contact Information for Intellectual Property Matters

Questions regarding intellectual property matters should be referred to the Patent Office cited in Block 26a. of the grant.

[NOTE: NCDMM Representative for All other Matters is listed in Paragraph 12. All questions should be directed to NCDMM.]

5. Revised Budget Requirements

Revised budgets, when required must be submitted on the SF 424 Research and Related Budget.

6. Technical Reporting

- (a) Technical reporting requirements are cited in Block 31 of the Award/Modification.
- (b) If reports are requested in Block 31 of the Award/Modification, the Grantee shall submit the performance results within ninety (90) days after the end date of the Grant.
- (c) The Grantee shall include a completed "Report Documentation Page" Standard Form (SF) 298 as the last page of the performance results prepared under this Grant. The form and instructions are available on the Office of Naval Research Home Page at <http://www.onr.navy.mil/Contracts-Grants/manage-grant/grants-forms-download.aspx>. However, Block 12a. of the SF 298 should be completed with the following distribution/availability statement: "Approved for Public Release; Distribution is Unlimited." If the Grantee does not agree with that distribution/availability, the Grantee should contact the cognizant AGO at the Administrative Office in Block 23a. of the ONR Award Form (10/99).

[NOTE: NCDMM Representative for All other Matters is listed in Paragraph 12. All questions should be directed to NCDMM. Technical requirements or deliverables may be identified in the Statement of Work.]

7. Financial Reporting

Financial reporting requirements are cited in Block 31 of the grant.

[Financial reporting may be identified in the Subrecipient Agreement (SRA). See Paragraph 55 in SRA for Subrecipient Financial Reporting.]

8. Incremental Funding Actions

No additional documentation is required to trigger an increment. However, recipients should note that low expenditure rates reported on payment requests might be cause for deferral of future funding increments.

9. Payments

- (a) All payments shall be made by funds transfers to the bank account registered in System for Award Management (SAM) at <https://www.sam.gov/portal/SAM/>. The Grantee agrees to maintain its registration in SAM including information necessary to facilitate payment via Electronic Funds Transfer (EFT). Should a change in registry or other incident necessitate the payment to an account other than that maintained in SAM, it is the Grantee's responsibility to notify the AGO and obtain a modification to this Grant reflecting the change. The Government shall not be held responsible for any misdirection or loss of payment which occurs as the result of a Grantee's failure to maintain correct/current EFT information within its SAM registration.
- (b) Any request for advance payments must be approved by the Administrative Grants Officer (AGO) at the Administrative Office shown in Block 23a of the award.
- (c) iRAPT (Invoicing, Receipt, Acceptance and Property Transfer formerly known as WAWF) has been designated as the Department of Defense standard for electronic invoicing and payment. To facilitate this effort for Universities and Nonprofit Organizations with awards administered by the Office of Naval Research (ONR) Regional Offices, DoD has established the ONR Electronic Payment System (PayWeb) (<https://payweb.onr.navy.mil>) as an initial entry point to iRAPT. If the Grantee participates in the PayWeb system, the Grantee shall submit an electronic request for payment to the Administrative Grants Officer (AGO) at the Administrative Office in Block 23a of the award, using the standard PayWeb processes.
- (d) Participation in the PayWeb system requires the Grantee to obtain an External Certificate Authority (ECA) certificate from an approved Certificate Authority for access. Operational Research Consultants (ORC) (<http://www.eca.orc.com>) and Symantec (<http://www.symantec.com/shared-service-pki/>) are approved ECA Authorities. If you have questions or require technical assistance in implementing your certificate, contact the Navy PKI Help Desk at 1-800-304-4636. The Grantee shall Contact the AGO at the Administrative Office in Block 23a of the award for instructions on how to register and use iRAPT and PayWeb.
- (e) Electronic submission of payment requests requires the Grantee to register in iRAPT and have the appropriate CAGE code activated. The Grantee's SAM Electronic Business Point of Contact (EBPOC) is responsible for activating the CAGE code in iRAPT by calling 1-866-618-5988. Once the Grantee's CAGE Code is activated, the SAM EBPOC will self-register in iRPAT and follow the instructions for a group administrator. The ONR Regional Offices will assist in this process. The ONR Regional Office is listed as the Administrative Office in Block 23a of the award.
- (f) If the Grantee is a For-Profit entity or does not participate in the ONR PayWeb System, the Grantee shall submit payment requests electronically via iRAPT. The Grantee shall contact the AGO at the Administrative Office in Block 23a of the award for instructions on how to register and use iRAPT.

[NOTE: Payment terms in Subaward are specified in Paragraph 26.]

10. The Need for Additional Federal Funding

The Government's legal obligation is limited to the amount shown as "Total Obligated on Award," Block 16 of the ONR Award Form (10/99).

[NOTE: Replace "Government" with "NCDMM" and replace "Block 16 of the ONR Award Form 10/99)" with "Subrecipient Agreement.""]

11. Equipment

Title to all equipment purchased or fabricated with funds provided under this grant or recipient cost sharing funds, as direct costs of the project or program, shall unconditionally vest in the recipient upon acquisition without further obligation to the Federal Government unless other conditions are imposed in the award.

[NOTE: Replace "grant" with "subaward" and "recipient" with "NCDMM.""]

12. Supplies

Title to supplies and other expendable property shall vest in the recipient providing the residual inventory of unused supplies does not exceed \$5,000 in total aggregate value upon termination or completion of the project or program. If the value of residual supplies exceeds \$5,000, the provisions of 2 CFR 200 applies.

[NOTE: Replace "recipient" with "subrecipient.""]

13. Reporting Potentially Classifiable Information

Report potentially classifiable information to the Technical Representative listed in Block 21 of ONR Award Form (10/99).

[NOTE: Replace "Block 21" with "NCDMM Representative for All other Matters," is listed in Paragraph 12.]

14. Termination

In case of a partial or full termination by the recipient, the recipient shall provide the required written termination notice to the awarding office contact listed in block 22 of ONR Award Form (10/99) and AGO at least 30 calendar days prior to the effective date of termination.

[NOTE: See Paragraph 44 for Subaward Termination Requirements.]

15. Enforcement

The recipient shall submit claims arising out of or relating to this grant in writing to the awarding office contact listed in block 22 of ONR Award Form (10/99) or AGO, as appropriate, and shall specify the nature and basis for the relief requested and include all data that supports the claim. The recipient and Grants Officer/AGO shall attempt to resolve all issues at the Grants Officer/AGO level.

[NOTE: References to "Recipient" shall mean "Subrecipient." References to "Awarding Office" or "AGO" shall mean "NCDMM.""]

16. Overpayment

Within ninety (90) days after the end date of the Grant, any overpayment of funds provided by the Grant shall be remitted to the Office of Naval Research AGO at the Administrative Office in Block 23a of the ONR Award Form (10/99), by check made payable to the US Treasury, DFAS, or Dept of Navy.

[NOTE: References to "ONR," "US Treasury," "DFAS or "Dept of Navy" shall refer to "NCDMM.""]

17. Collection of Amounts Due

In absence of mutual agreement between the recipient and the awarding agency, the Grants Officer/AGO shall make a determination regarding any recipient indebtedness and submit a written notice of such a decision to the recipient. Within 30 calendar days of the Grants Officer's/AGO's determination, the recipient shall either pay the amount owed or inform the Grants Officer/AGO of the recipient's intent to appeal the determination. If the recipient elects not to appeal, any amounts not paid within 30 calendar days of the Grants Officer's/AGO's determination will be considered a delinquent debt. The recipient and Grants Officer/AGO shall attempt to resolve all issues at the Grants Officer/AGO level.

[NOTE: All references to "Recipient" shall refer to "Subrecipient." All references to Government entities shall refer to "NCDMM.""]

18. Option to Renew

If an option is indicated in Block 30 of the ONR Award Form (10/99), the Government may require the continuation of the research as detailed in Block 15 of the ONR Award Form (10/99). The option may be exercised by a modification to the Grant.

[NOTE: Options, if any, are specified in the NCDMM Subrecipient Agreement.]

19. Amendment of the Grant

Requests by the Grantee to amend a grant must be in writing to the AGO at the Administrative Office cited in Block 23.a. of the grant. Such requests only become official when incorporated by modification issued by an AGO or Grants Officer.

[Replace “Grantee” with “Subrecipient;” Replace “AGO,” “Administrative Officer” or “Grants Officer” with “NCDMM.”]

20. Activities Abroad

The Grantee shall assure that project activities carried on outside the United States are coordinated as necessary with appropriate Government authorities and that appropriate licenses, permits, or approvals are obtained prior to undertaking proposed activities. The awarding agency does not assume responsibility for Grantee compliance with the laws and regulations of the country in which the activities are to be conducted.

[NOTE: Replace “Grantee” with “Subrecipient.” Replace “Government” and “awarding agency” with “NCDMM.”]

21. Cargo Preference

The recipient agrees that it will comply with the Cargo Preference Act of 1954 (46 U.S.C. 1241), as implemented by Department of Transportation regulations at 46 CFR 381.7, which require that at least 50 percent of equipment, materials or commodities procured or otherwise obtained with U.S. Government funds under this Grant, and which may be transported by ocean vessel, shall be transported on privately owned U.S.-flag commercial vessels, if available.

[NOTE: Replace “recipient” with “Subrecipient.”]

22. Controlled Unclassified Information

The parties understand that information and materials provided pursuant to or resulting from this Grant may be export controlled, sensitive, for official use only or otherwise protected by law, executive order or regulation. The Grantee is responsible for compliance with all applicable laws and regulations. Nothing in this Grant shall be construed to permit any disclosure in violation of those restrictions.

[NOTE: Replace “Grant” with “Subaward” and “Grantee” with “Subrecipient.”]

23. Reporting Requirements for Sub-award and Executive Compensation

The Grantee shall report on first-tier sub-awards and executive compensation in accordance with the Federal Funding Accountability and Transparency Act (FFATA) of 2006 and associated 2008 amendments. Reporting is required for grants equal to or over \$25,000. If the initial award is below \$25,000 but subsequent grant modifications result in a total award equal to or over \$25,000, the award will be subject to the reporting requirements, as of the date the award exceeds \$25,000. If the initial award equals or exceeds \$25,000 but funding is subsequently deobligated such that the total award amount falls below \$25,000, the award continues to be subject to the reporting requirements of the Transparency Act.

[NOTE: Replace “Grants” with “Subawards” and “Grantee” with “Subrecipient.”]

24. Financial Assistance Use of Universal Identifier and System for Award Management

Grantee and first-tier sub-recipients shall have Dun and Bradstreet Data Universal Numbering System (DUNS) numbers and maintain current registrations in System for Award Management (SAM).

[NOTE: Replace “Grantee” with “Subrecipient.”]

25. Food and Beverage

Naval Surface Warfare Center Indian Head Explosive Ordnance Disposal Technology Division funds shall not be used to pay for food or beverages.

26. Publications and Acknowledgment of Sponsorship

- (a) Publication of results of the research project in appropriate professional journals is encouraged as an important method of recording and reporting scientific information. One copy of each paper planned for publication will be submitted to the Program Officer/Technical Representative in Block 21 of the ONR Award Form (10/99) simultaneously with its submission for publication. Following publication, copies of published papers shall be submitted to the Program Officer/Technical Representative.
- (b) The Grantee agrees that when releasing information relating to this Grant, the release shall include a statement to the effect that the project or effort undertaken was or is sponsored by the Department of the Navy, Naval Surface Warfare Center Indian Head Explosive Ordnance Disposal Technology Division.
- (c) Disclaimer: The Grantee is responsible for assuring that every publication of material (including World Wide Web pages) based on or developed under this award, except scientific articles or papers appearing in scientific, technical or professional journals, contains the following disclaimer: "Any opinions, findings, and conclusions or recommendations expressed in this material are those of the author(s) and do not necessarily reflect the views of the Naval Surface Warfare Center Indian Head Explosive Ordnance Disposal Technology Division."
- (d) For the purpose of this clause, information includes news releases, articles, manuscripts, brochures, advertisements, still and motion pictures, speeches, trade association proceedings, symposia, etc.
- (e) Nothing in the foregoing shall affect compliance with the requirements of the article entitled, "Security."

[NOTE: Replace "Grantee" with "Subrecipient." All Publications must be sent to NCDMM prior to release.]

27. Live Organisms

By accepting funds under this Grant, the recipient assures that it will comply with applicable provisions of the following national policies concerning live organisms:

- (a) For human subjects, the Common Federal Policy for the Protection of Human Subjects codified by the Department of Health and Human Services at 45 CFR Part 46 and implemented by the Department of Defense at 32 CFR Part 219.
- (b) For animals:
 - (1) Rules on animal acquisition, transport, care, handling, and use in (i) 9 CFR Parts 1-4, Department of Agriculture rules that implement the Laboratory Animal Welfare Act of 1966 (7 U.S.C. 2131-2159, as amended); and (ii) the "Guide for the Care and Use of Laboratory Animals," National Institutes of Health Publication No. 86-23.
 - (2) Prohibitions on the purchase or use of dogs and cats for certain medical training purposes, in Section 8019 (10 U.S.C. 2241 note) of the Department of Defense Appropriations Act, 1991 (Pub. Law 101-511).
 - (3) Rules of the Departments of Interior (50 CFR Parts 10-24) and Commerce (50 CFR Parts 217-227) implementing laws and conventions on the taking possession, transport, purchase, sale, export or import of wildlife and plants, including the Endangered Species Act of 1973 (16 U.S.C. 1531-1543); Marine Mammal Protection Act (16 U.S.C. 1361-1384); Lacey Act (18 U.S.C. 42); and Convention on International Trade in Endangered Species of Wild Fauna and Flora.

[NOTE: Replace "Grant" with "Subaward." Replace "recipient" with "Subrecipient."]

28. Research Involving Recombinant DNA Molecules

Any recipient performing research involving recombinant DNA molecules and/or organisms and viruses containing recombinant DNA molecules agrees by acceptance of this award to comply with the National Institutes of Health "Guidelines for Research Involving Recombinant DNA Molecules", of July 5, 1994 (59 FR 34496), amended August 5, 1994 (59 FR 40170), amended April 27, 1995 (60 FR 20726), and such later revision of those guidelines as may be published in the Federal Register.

[NOTE: Replace "award" with "Subaward." Replace "recipient" with "Subrecipient."]

29. Environmental Standards

By accepting funds under this Grant, the recipient assures that it will, to the extent required by U. S. law:

- (a) Comply with applicable provisions of the Clean Air Act (42 U.S.C. 7401, et seq.) and Clean Water Act (33 U.S.C. 1251, et. seq.), as implemented by Executive Order 11738 [3 CFR, 1971-1975 comp., p. 799] and Environmental Protection Agency (EPA) rules at 40 CFR Part 15. In accordance with the EPA rules, the recipient further agrees that it will:
 - (1) Not use any facility on the EPA's List of Violating Facilities in performing any award that is nonexempt under 40 CFR 15.S (awards of less than \$100,000, and certain other awards, exempt from the EPA regulations), as long as the facility remains on the list.

- (2) Notify the awarding agency if it intends to use a facility in performing this award that is on the List of Violating Facilities or that the recipient knows has been recommended to be placed on the List of Violating Facilities.
- (b) Identify to the awarding agency any impact this award may have on:
 - (1) The quality of the human environment, and provide any help the agency may need to comply with the National Environmental Policy Act (NEPA, at 42 U.S.C. 4321, et seq.) and to prepare Environmental Impact Statements or other required environmental documentation. In such cases, the recipient agrees to take no action that will have an adverse environmental impact (e.g., physical disturbance of a site such as breaking of ground) until the agency provides written notification of compliance with the environmental impact analysis process.
 - (2) Coastal barriers, and provide any help the agency may need to comply with the Coastal Barriers Resource Act (16 U.S.C. 3501, et seq.), concerning preservation of barrier resources.
 - (3) Any existing or proposed component of the National Wild and Scenic Rivers system, and provide any help the agency may need to comply with the Wild and Scenic Rivers Act of 1968 (16 U.S.C. 1271, et seq.).

[NOTE: Replace “Grant” with “Subaward.” Replace “recipient” with “Subrecipient.”]

30. Nondiscrimination

By accepting funds under this Grant, the recipient assures that it will comply with applicable provisions of the following national policies prohibiting discrimination:

- (a) On the basis of race, color, or national origin, in Title VI of the Civil Rights Act of 1964 (42 U.S.C. 2000d, et seq.), as implemented by DoD regulations at 32 CFR Part 195.
- (b) On the basis of handicap, in Section 504 of the Rehabilitation Act of 1973 (29 U.S.C. 794), as implemented by Department of Justice regulations at 28 CFR Part 41 and DoD regulations at 32 CFR Part 56.

[NOTE: Replace “Grant” with “Subaward.” Replace “recipient” with “Subrecipient.”]

31. Prohibition on Using FY 2015 Funds under Grants with Entities that Require Certain Internal Confidentiality Agreements

- (a) The recipient shall not require employees, contractors or subrecipients seeking to report fraud, waste, or abuse to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or contractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.
- (b) The recipient must notify its employees, contractors, or subrecipients that the prohibitions and restrictions of any internal confidentiality agreements inconsistent with paragraph (a) of this award provision are no longer in effect.
- (c) The prohibition in paragraph (a) of this award provision does not contravene requirements applicable to Standard Form 312, Form 4414, or any other form issued by a Federal department of agency governing the nondisclosure of classified information.
- (d) If the Government determines that the recipient is not in compliance with this award provision, it:
 - (1) Will prohibit the recipient’s use of any FY 2015 funds under this award, in accordance with section 743 of Division E, Title VIII of the Consolidated and Further Continuing Resolution Appropriations Act, 2015, (Pub. L 113-235); and
 - (2) May pursue other remedies available for the recipient’s material failure to comply with award terms and conditions.

[NOTE: Replace “Award” with “Subaward.” Replace “recipient” with “Subrecipient.”]

32. Security

The Grantee shall not be granted access to classified information under this Grant. If security restrictions should happen to apply to certain aspects of the proposed research, the Grantee will be so informed. In the event that the scientific work under this Grant may either need classification or involve access to or storage of any classified data, the Government shall make a decision on the need to classify, or require such access or storage within 30 days after receipt of a written notice from the Grantee. If the decision is affirmative, the Government may invoke the Termination clause in 2 CFR Part 200, Subpart D, 200.339 or DoDGARs 34.51, as appropriate.

[NOTE: Replace “Grant” with “Subaward.” Replace “Grantee” with “Subrecipient.” All correspondence to the Government shall be made by NCDMM.]

Attachment 3

Basis of Estimate/Budget

Team Member Name: Youngstown Business Incubator			
Proposal Number: Digital Engineering 24 month Pop			
		GRAND TOTAL	
	REQUESTED AMERICA MAKES FEDERAL FUNDING		
	LABOR	655,190	
	TRAVEL	35000	
	SUBCONTRACT	0	
	MATERIALS	8000	
	EQUIPMENT	0	
	CONSULTANT	0	
	ODC's	275000	
	INDIRECTS on ODS's (10%)	27500	
	TOTAL REQUESTED AMERICA MAKES FEDERAL FUNDING	1,000,690	
	COST SHARE		
	LABOR	0	
	TRAVEL	0	
	SUBCONTRACT	0	
	MATERIALS	0	
	EQUIPMENT	0	
	CONSULTANT	0	
	ODC's	0	
	TOTAL PROPOSED COST SHARE	0	
	TOTAL PROJECT EFFORT	1,000,690	

Attachment 4

DD 254

Not required.

Attachment 5

Government Data Rights

The Government will use data rights and computer software related terms defined in FAR 52.227-14(a). Technical data (including computer software documentation) and computer software developed under this effort shall be Government Purpose Rights (GPR) at the minimum, for a five-year period. Upon expiration of the five-year period, the Government will have unlimited rights. The Government will not have unlimited rights in technical data developed with mixed private and Government funding, including without limitation those technical data based in part on Subrecipient' and sub-vendors' existing prototypes or processes.

Any commercial or COTS software shall be provided with a transferable license that allows distribution of the software and transfer of the license to any Government agency or DoD contractor. All software licensing shall include a minimum term of five years of use. All software shall be provided with any available major upgrades, minor updates, security patches, and technical support for the entire period of performance. When the addition of new software or hardware is proposed for the system or developed under this solicitation with Government funding or partial Government funding, the contractor shall ensure that sufficient rights in technical data (software and hardware) are procured to enable the Government to maintain and modify the system using Government personnel and/or third-party Vendors. Government approval is required for exceptions to GPR.

The Subrecipient shall be requested to provide pricing to acquire any portion of their solution which is proposed to be delivered with limited or restricted rights. The Government may choose to license or purchase the rights to these proprietary data upon successful delivery of the prototype.

Printed deliverable (e.g., printed hardcopies, .doc, web-based html, etc.) shall be labeled accordingly and contain all appropriate markings associated with the distribution classification. All technical data and information developed under this effort shall be marked with the appropriate marking in accordance with DoDI 5320.24, Distribution Statements on Technical Documents. This generally should be marked with "DISTRIBUTION STATEMENT D. Distribution authorized to the Department of Defense and U.S. DoD contractors only (XX April 2023)."

The Subrecipient shall analyze feasible non-proprietary solutions and incorporate them when applicable to the effort. This includes, but is not limited to, software, technical data, source code, drawings and other product definition data, manuals, warranties, and integration efforts.

If the Government has a need for rights not conveyed under the license customarily provided to the public, the Government must negotiate with the third-party software vendor(s) to determine if there are acceptable terms for transferring such rights. The specific rights granted to the Government shall be enumerated in the license agreement or an addendum thereto.

The Government shall have the following rights to the following deliverables specified in the Subrecipient Agreement:

Deliverables		Data Rights
Project Kick-off /Monthly Status Report		Unlimited
Project Execution Plan		Unlimited
Weekly IPT Meeting		Unlimited
Monthly Project Management Reviews		Unlimited
Quarterly Project Management Reviews		Unlimited
First Annual Report		Government Purpose Rights (GPR)
Final Project Report		Government Purpose Rights (GPR)